
SSDI Hearing Evidence Letter Kit

The 5-Day INFORM Rule Your Disability Guide Didn't Explain

A fill-in-the-blank letter template that preserves your right to have late-arriving medical evidence considered at your ALJ hearing — using the procedural distinction most guides skip entirely.

- ✓ Customizable INFORM letter template with fill-in fields
- ✓ 5-page procedural explainer with federal citation chain
- ✓ 60-day deadline calendar + provider tracking worksheet
- ✓ SSR 17-4p relevance category guide for evidence descriptions

Anchored in federal law:

20 CFR § 404.935(a) · HALLEX I-2-5-13 · SSR 17-4p

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1. The 5-Day INFORM Letter

Use this letter when you have requested medical records from a provider but have **not yet received them** — and your ALJ hearing is approaching. By informing the ALJ about the existence of these records at least 5 business days before the hearing, you preserve **mandatory** consideration of the evidence when it arrives — even if it arrives after the deadline.

Key distinction: This is different from *submitting* evidence. Most guides only tell you to submit on time. They don't explain that **informing** the ALJ about evidence you haven't received yet is a separate, protected procedural right under 20 CFR § 404.935(a) and HALLEX I-2-5-13.

LETTER TEMPLATE — Copy and Customize

[YOUR FULL NAME] _____

[YOUR ADDRESS] _____

[CITY, STATE, ZIP] _____

[DATE] _____

Office of Hearings Operations

[HEARING OFFICE ADDRESS — from your Notice of Hearing] _____

Re: [YOUR NAME] — SSN ending in [LAST 4 DIGITS] _____

Hearing Date: [YOUR HEARING DATE] _____

Case No.: [YOUR CASE NUMBER — from your Notice of Hearing] _____

Dear Administrative Law Judge [ALJ NAME, if known]:

Pursuant to 20 CFR § 404.935(a), I am writing to **INFORM** this hearing office about written evidence that is relevant to my disability claim but has not yet been received from the treating provider.

Specifically, I am informing the ALJ about the following outstanding medical records:

Field	Your Information
Provider Name:	[NAME OF DOCTOR / CLINIC / HOSPITAL]

Provider Address:	<i>[ADDRESS]</i>
Type of Records:	<i>[e.g., treatment notes, MRI results, mental health evaluation, lab work]</i>
Date(s) of Service:	<i>[APPROXIMATE DATES]</i>
Date Records Requested:	<i>[DATE YOU REQUESTED THEM]</i>
Reason Outstanding:	<i>[e.g., provider processing delay, records department backlog]</i>

SSR 17-4p Relevance Categories — Describe how the evidence relates to one or more of these SSA-recognized categories:

- **Medical condition** (diagnosis, symptoms, functional limitations)
- **Medical treatment** (medications, therapies, surgical procedures)
- **Work activity** (ability or inability to perform job functions)
- **Job history** (past relevant work, transferable skills)
- **Other issues** relevant to disability/blindness determination

[REPEAT THE EVIDENCE BLOCK ABOVE FOR EACH ADDITIONAL PROVIDER]

I am providing this notification more than five (5) business days before my scheduled hearing date in accordance with 20 CFR § 404.935(a). Per HALLEX I-2-5-13, I understand that by informing the hearing office about the existence of these outstanding records in advance, the ALJ is directed to consider this evidence when it is received, even if the records arrive after the 5-business-day deadline.

I will submit the records as soon as they are received from the provider(s). I respectfully request that the record remain open for the receipt of this evidence.

Thank you for your attention to this matter.

Sincerely,

[YOUR SIGNATURE] _____

[YOUR PRINTED NAME] _____

[YOUR PHONE NUMBER] _____

[YOUR EMAIL ADDRESS, if applicable] _____

2. The Procedural Explainer

Why This Letter Works — And What Happens If You Skip It

When you have a Social Security Disability Insurance (SSDI) hearing scheduled before an Administrative Law Judge (ALJ), federal regulations require that you inform the hearing office about **or** submit any written evidence no later than **5 business days before the hearing date**.

20 CFR § 404.935(a):

*“...each party must **inform us about or submit** any written evidence...no later than 5 business days before the date of the scheduled hearing.”*

Notice the word “**or**” — you can **inform** OR **submit**. These are two separate actions with very different consequences if you miss the 5-day deadline.

The INFORM vs. SUBMIT Asymmetry

This is the core procedural distinction most disability guides skip. Here's what the Social Security Administration's own procedures manual (HALLEX) says:

	You INFORM Before the Deadline	You Only SUBMIT After the Deadline
What happens	ALJ MUST follow HALLEX I-2-5-13 procedures — directed to consider the evidence when it arrives	ALJ MAY decline to consider the evidence (unless you show good cause under § 404.935(b))
Your burden	Low — just notify about what records exist and where they are	High — must prove good cause for the late submission
Protection level	MANDATORY consideration	DISCRETIONARY — ALJ decides

The inform-don't-submit rule — 20 CFR § 404.935(a):

When a claimant or appointed representative informs the ALJ about evidence at least five business days before the date of the scheduled hearing but does not submit it by that deadline, the ALJ follows the procedures in HALLEX I-2-5-13 to address that evidence.

Contrast with late submission:

*"If a claimant or appointed representative informs the agency about or submits evidence less than five business days before...the ALJ **may decline** to consider that evidence unless the circumstances in 20 CFR 404.935(b) and 416.1435(b) apply."*

What This Means in Practice

If you know that medical records exist at a provider — say your psychiatrist's office or a hospital where you had an MRI — but the provider hasn't sent them yet, you don't have to wait. You can send a one-page letter to the hearing office that says:

"These records exist at [provider]. I've requested them. They haven't arrived yet. I'm informing you now, in accordance with 20 CFR § 404.935(a)."

That notification — sent at least 5 business days before your hearing — triggers a different procedural track than if the records simply showed up late with no prior notice. With the INFORM letter on file, the ALJ is **directed** (per HALLEX I-2-5-13) to consider the evidence. Without it, the ALJ has **discretion** to exclude it.

When to Use This Letter

- ✓ You have an SSDI ALJ hearing scheduled (you received Form HA-501 / Notice of Hearing)
- ✓ You have requested medical records from one or more providers
- ✓ Those records have **NOT** yet arrived
- ✓ Your hearing is more than 5 business days away (you still have time to file)
- ✓ You want to preserve mandatory consideration of the evidence when it arrives

When NOT to Use This Letter

- ✗ Your hearing is **less than 5 business days** away — consult your representative about the good-cause exception under § 404.935(b)
- ✗ You already have the records in hand — **submit** them directly instead of informing
- ✗ You have an appointed representative who handles your evidence submission — coordinate with them first

SSR 17-4p: What “Relevance” Means to the SSA

Social Security Ruling 17-4p (“Responsibility for Developing Written Evidence”) clarifies what the SSA considers “relevant” evidence when you inform the ALJ. Your INFORM letter is stronger when it connects the outstanding records to one of these SSA-recognized categories:

SSR 17-4p Category	What to Include in Your INFORM Letter
Medical condition	Diagnosis, symptoms, functional limitations the records document
Medical treatment	Medications, therapies, surgical procedures, or specialist visits
Work activity	Evidence of inability to perform substantial gainful activity (SGA)
Job history	Past relevant work, transferable skills, vocational limitations
Other issues	Any other evidence relevant to the disability/blindness determination

The SSDI Appeal Timeline — Where This Letter Fits

An SSDI claim moves through a defined appeal sequence. The 5-day INFORM letter is relevant at Stage 3:

Stage	Form	What Happens
1. Initial Application	SSA-16	First application filed

2. Reconsideration	SSA-561	Request for Reconsideration after initial denial
3. ALJ Hearing ←	HA-501	Request for Hearing by Administrative Law Judge → THIS IS WHERE THE 5-DAY INFORM RULE APPLIES
4. Appeals Council	HA-520	Request for Review by Appeals Council
5. Federal Court	Civil complaint	Federal district court review

Representative Appointment (Optional But Important)

If you have an attorney or non-attorney representative, they should be handling evidence submission. Form SSA-1696 is the official appointment of representative form. However, even with a representative, you can send the INFORM letter yourself as an additional safeguard — there is no rule preventing a claimant from also notifying the hearing office directly.

How to Send the Letter

- **Fax** to the hearing office fax number on your Notice of Hearing (fastest — creates a timestamp)
- **Mail** via certified mail with return receipt requested (creates proof of delivery date)
- **Upload** via your my Social Security account if electronic submission is available for your hearing office
- Keep a copy of whatever you send, with the date you sent it

Tip: The key is that the hearing office **receives** your notification at least 5 business days before the hearing. Business days = Monday through Friday, excluding federal holidays. Send it early enough to account for mail delivery time.

3. 60-Day Deadline Calendar Worksheet

Use this worksheet to calculate your critical deadlines. You typically receive 60+ days notice before an ALJ hearing. Fill in your dates below.

Step	Action	Your Date
1	Notice of Hearing received (start date)	___ / ___ / ____
2	Hearing date (from your Notice of Hearing)	___ / ___ / ____
3	5 business days before hearing = INFORM deadline (Count backward: skip weekends + federal holidays)	___ / ___ / ____
4	Request medical records from all providers (Do this AS SOON as you receive the Notice)	___ / ___ / ____
5	Send INFORM letter (if records not yet received) (Must arrive at hearing office BEFORE deadline in Step 3)	___ / ___ / ____
6	Submit records when received (Even after hearing, if INFORM letter was filed on time)	___ / ___ / ____

Provider Tracking Table

Track each provider you've requested records from. Use one row per provider. Add the SSR 17-4p relevance category to strengthen your INFORM letter.

Provider Name & Address	Records Requested	Records Received	INFORM Letter Sent	SSR 17-4p Category
	___ / ___ / ____	___ / ___ / ____	___ / ___ / ____	
	___ / ___ / ____	___ / ___ / ____	___ / ___ / ____	
	___ / ___ / ____	___ / ___ / ____	___ / ___ / ____	
	___ / ___ / ____	___ / ___ / ____	___ / ___ / ____	
	___ / ___ / ____	___ / ___ / ____	___ / ___ / ____	

Important Notices

This is not legal advice.

This kit is an educational resource that aggregates publicly available federal regulations and Social Security Administration procedural guidance. It is not a substitute for legal counsel from a qualified disability attorney or representative.

The regulatory citations in this kit are current as of the publication date. Federal regulations can change. Always verify current rules at the official sources:

Citation	Official Source
20 CFR § 404.935	law.cornell.edu/cfr/text/20/404.935
HALLEX I-2-5-13	ssa.gov/OP_Home/hallex/I-02/I-2-5-13.html
SSR 17-4p	ssa.gov (search “SSR 17-4p”)

If you need legal representation for your SSDI hearing, resources include:

- Your state’s Disability Rights organization (search: disability rights + [your state])
- The National Organization of Social Security Claimants’ Representatives (NOSSCR): nossr.org
- Legal Aid societies in your area
- Disability attorneys who work on contingency (paid from back benefits if you win)

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Anchored in 20 CFR § 404.935(a) · HALLEX I-2-5-13 · SSR 17-4p

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